

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 1058-001
SUBJECT: Sustainable Operations Council	DATE: December 21, 2021
OPI: Office of Property and Environmental Management	EXPIRATION DATE: December 21, 2026

<u>Section</u>	<u>Page</u>
1. Purpose	1
2. Special Instructions/Cancellations	1
3. Scope	2
4. Background	2
5. Policy	2
6. Roles and Responsibilities	3
7. Inquiries	6
Appendix A – Acronyms and Abbreviations	A-1
Appendix B – Authorities and References	B-1

1. PURPOSE

This Departmental Regulation (DR) establishes policy for the operation of the United States Department of Agriculture (USDA) Sustainable Operations Council (SOC).

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This DR supersedes DR 1058-001, *USDA Sustainable Operations Council – Implementing Executive Order (E.O.) 13423, Strengthening Federal Environmental, Energy, and Transportation Management*, dated January 16, 2009.
- b. This DR is effective immediately when published.
- c. All USDA Mission Areas, agencies, and staff offices will align their policies and procedures with this DR within 180 calendar days of the publish date.

3. SCOPE

This DR applies to all USDA Mission Areas, agencies, and staff offices.

4. BACKGROUND

- a. Multiple statutes require Federal agencies to reduce their environmental impacts, reduce energy and water use, increase the use of renewable energy, purchase sustainable products, and meet other sustainability goals. Since 1991 a series of E.O.s have required Federal agencies to prioritize actions that reduce waste, minimize costs, and enhance resilience of infrastructure and operations.
- b. Federal agencies also must increase efficiency, optimize performance, eliminate unnecessary use of resources, and protect the environment. The collaboration of all USDA Mission Areas, agencies, and staff offices through the SOC is required to support these types of activities.

5. POLICY

- a. The SOC will:
 - (1) Convene quarterly to provide ongoing senior management involvement in sustainable operations programs, such as:
 - (a) Energy use management and reduction;
 - (b) Renewable energy;
 - (c) Water use management;
 - (d) Performance contracting;
 - (e) Sustainable buildings;
 - (f) Waste reduction and management;
 - (g) Building evaluations and benchmarking;
 - (h) Real property management;
 - (i) Personal property and fleet management;
 - (j) Leasing;

- (k) Sustainable acquisition;
 - (l) Electronics stewardship;
 - (m) Data center management;
 - (n) Greenhouse gas management and reduction;
 - (o) Hazardous waste management;
 - (p) Environmental compliance;
 - (q) Contaminated site remediation; and
 - (r) Other areas as appropriate;
- (2) Advise the Assistant Secretary for Administration (ASA) and provide additional emphasis to senior-level leadership, and coordination on sustainable operating policies Departmentwide; and
 - (3) Share information regarding sustainable operations, implementation practices and accomplishments with senior managers across the Department.
- b. The efforts of the SOC will be supported by the staff-level working groups listed below. The SOC may establish and disband working groups, as needed. The composition and content of the working groups may also be changed as needed.
- (1) Facilities;
 - (2) Green Purchasing;
 - (3) Leasing;
 - (4) Real Property; and
 - (5) Fleet.

6. ROLES AND RESPONSIBILITIES

- a. The ASA will:
- (1) Chair the SOC (or designate a representative to chair the SOC);
 - (2) Determine the membership of the SOC;

- (3) Work through the SOC to develop and implement policies, procedures, processes, reporting mechanisms, and required actions relating to the sustainable operations programs listed in Section 5 of this regulation; and
 - (4) Monitor the implementation of this regulation and advise the Secretary and the Deputy Secretary of Agriculture on the Department's performance relating to the sustainable operations programs listed in Section 5 of this regulation.
- b. The Director, Office of Property and Environmental Management (OPEM) will:
 - (1) Serve as the Executive Secretary of the SOC; and
 - (2) Serve as Departmental Administration representative to the SOC.
- c. The SOC will:
 - (1) Be chaired by the ASA (or a designated representative of the ASA);
 - (2) Be comprised of members from each of the following:
 - (a) USDA Mission Areas, including, but not limited to:
 - 1 Trade and Foreign Agricultural Affairs;
 - 2 Food, Nutrition, and Consumer Services;
 - 3 Food Safety;
 - 4 Farm Production and Conservation;
 - 5 Marketing and Regulatory Programs;
 - 6 Natural Resources and the Environment;
 - 7 Research, Education, and Economics; and
 - 8 Rural Development.
 - (b) USDA staff offices, including, but not limited to:
 - 1 Office of Budget and Program Analysis;
 - 2 Office of the Chief Financial Officer;
 - 3 Office of the Chief Information Officer;

- 4 Office of the Chief Economist;
- 5 Office of General Counsel;
- 6 Office of Operations; and
- 7 Office of Property and Environmental Management.

(c) USDA agencies, including, but not limited to:

- 1 Agricultural Marketing Service;
- 2 Agricultural Research Service;
- 3 Animal and Plant Health Inspection Service;
- 4 Farm Service Agency;
- 5 Food Safety and Inspection Service;
- 6 Forest Service;
- 7 Natural Resource Conservation Service; and
- 8 Rural Development.

(d) Membership is comprised of the Under Secretary or their delegate for each Mission Area and a delegate from each member agency and staff office.

(e) Members can be changed or rotated at the discretion of the leadership of the respective Mission Area, member agency, or staff office.

- (3) Provide internal oversight, direction, and leadership to comply with sustainable operations goals and requirements;
- (4) Ensure that USDA policies and programs reflect sustainable operations goals and requirements;
- (5) Coordinate with senior USDA leaders, as necessary, for effective implementation;
- (6) Monitor USDA performance on meeting sustainable operations goals and requirements;
- (7) Discuss how USDA will implement Governmentwide real property directives issued by General Services Administration, Federal Real Property Council, Office of Management and Budget, and other entities; and

- (8) Support USDA's Enterprise Asset Management System (EAMS) data integrity efforts.
- d. The SOC Working Groups will:
 - (1) Conduct forums for information exchange, collaboration, resource sharing, and coordination;
 - (2) Provide the SOC with input to facilitate policy, guidance, metrics, reporting, tools, and resources to improve implementation of sustainability practices and policies;
 - (3) Provide input on Departmental submissions such as the USDA Sustainability Report and Implementation Plan (SRIP), USDA Annual Energy Report, USDA Capital Plan, and the Federal Real Property Report;
 - (4) Discuss and identify strategies for cost effectively and efficiently managing USDA's real and personal property portfolios while meeting Mission Area, agency, staff office, and customer needs; and
 - (5) Prepare progress reports as needed.
- e. Mission Area, Agency, and Staff Office Heads will:
 - (1) Appoint a primary and secondary delegate to the SOC; and
 - (2) Monitor their Mission Area, agency, or staff office performance relating to the sustainable operations programs listed in Section 5 of this regulation.

7. INQUIRIES

Please direct questions and comments concerning the requirements of this regulation to SOC mailbox: SM.OPEM.EMD@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

ASA	Assistant Secretary for Administration
CFR	Code of Federal Regulations
DR	Departmental Regulation
EAMS	Enterprise Asset Management System
E.O.	Executive Order
OPEM	Office of Property and Environmental Management
SOC	Sustainable Operations Council
SM	Secretary's Memorandum
SRIP	Sustainability Report and Implementation Plan
USDA	United States Department of Agriculture

APPENDIX B

AUTHORITIES AND REFERENCES

[7 Code of Federal Regulations \(CFR\) § 2.24](#), *Assistant Secretary for Administration*

[7 CFR § 2.90](#), *Director, Office of Property and Fleet Management*

Energy Act of 2020, [Public Law \(P.L.\) 116-260](#), December 27, 2020

Energy Efficiency Improvement Act of 2015, [P.L. 114-11](#), April 30, 2015

Energy Independence and Security Act of 2007, [P.L. 110-140](#), December 19, 2007

Energy Policy Act of 2005, [P.L. 109-58](#), August 8, 2005

USDA, [DR 5600-005](#), *Sustainable Operations*, June 22, 2021

USDA, Secretary's Memorandum [\(SM\) 1077-001](#), *Office of Property and Fleet Management Name Change*, March 26, 2021

USDA, *U.S. Department of Agriculture Sustainable Operation Council Charter*